Japanese Constitution

The modern state of Japan came into existence with the Meiji Restoration in 1868. The Meiji Constitution remained in force for 58 years (from 1889 to 1947). This Constitution was based on the ideals of autocracy, authoritarianism and monarchy.

After the Second World War (1939–1945), Japan was placed under Allied Occupation from 1945 to 1952. The U.S. General Douglas MacArthur was the Supreme Commander of the Allied Powers in Japan. Under his direction, Japan adopted a new democratic Constitution in 1946. This Constitution is based on the ideals of democracy and peace, as conceived by the Occupation Authorities.

The new and the present Constitution of Japan became operative in 1947. It came to be known both as the MacArthur Constitution as well as the Showa Constitution. Showa is the title of the reign of Emperor Hirohito and means 'Radiant Peace'. At the time of adoption of the new Constitution, Hirohito was the Emperor and Shidehara was the Prime Minister of Japan.

The salient features of the present Constitution of Japan are as follows:

1. Written Constitution Like the American Constitution, the Japanese Constitution is a written Constitution. It contains a Preamble and 103 Articles divided into 11 chapters. It is a unique blend of the American and the British system. The Preamble emphasises the principle of the sovereignty of the people. The chapters of the Constitution are mentioned in Table 95.3.

2. Rigid Constitution Like the American Constitution, the Japanese Constitution is a rigid one. It cannot be amended by the Diet (Japanese Parliament) in the same manner as the ordinary laws are made. It can be amended only by means of a special process provided by the Constitution for that purpose. Hence, in Japan, there exists a distinction between a constitutional law and an ordinary law.

The Japanese Constitution lays down the following procedure for its amendment:

(i) The amendment shall be initiated by the Diet. Such a proposal must be passed by a majority of two-thirds of its membership.

(ii) After that, it is submitted to the people for ratification at a special referendum or a specific election. It must be approved by the majority of the people.

(iii) Amendment when so ratified shall immediately be promulgated by the Emperor in the name of the people, as an integral part of the Constitution.

It must be mentioned here that the Japanese Constitution has not so far been amended even once. Thus, the Constitution reads today as it did in 1947.

3. Unitary Constitution Like the British Constitution, the Japanese constitution provides for a unitary state. There is no division of powers between the Central and provincial Governments. All powers are vested in the single supreme Central Government located at Tokyo. The provinces derive their authority from the Central Government. The Diet can expand or diminish the authority and jurisdiction of the provinces. Thus, the provinces are subordinate units of Government and enjoy only those powers which are delegated to them by the supreme Central Government.

Table 95.3 Japanese Constitution at a Glance